

Safe Comfort Home Care: Notice of Privacy Practices (HIPAA)

Effective Date: _____

This Notice describes how medical, personal, and service-related information about you may be used and disclosed, and how you can access this information. Please review it carefully.

Safe Comfort Home Care, LLC (“the Agency”) is required by law to maintain the privacy of your protected health information (PHI) and provide you with this Notice explaining our legal duties, your rights, and how we may use or disclose your information.

1. OUR RESPONSIBILITIES

Safe Comfort Home Care is required to:

- Protect the privacy and confidentiality of your PHI.
 - Provide you with this Notice of our legal duties and privacy practices.
 - Notify you if a breach occurs that may have compromised the privacy or security of your PHI.
 - Follow the terms of this Notice currently in effect.
-

2. HOW WE MAY USE AND DISCLOSE YOUR INFORMATION

We may use and disclose your PHI for the following reasons without your written authorization:

A. For Treatment

To plan, coordinate, and provide Personal Assistance Services (PAS), including:

- Communicating with caregivers and authorized family members
- Documenting observations, needs, or changes in condition
- Consulting with supervisors or authorized staff regarding your service plan

B. For Payment

To obtain payment for services, including:

- Billing insurance or third-party payors (if applicable)
- Verifying service authorization
- Providing necessary documentation to payors

C. For Health Care Operations

To ensure quality and compliance, including:

- Supervisory visits
- Quality assessments and audits
- Staff training and accreditation

D. When Required by Law

We may disclose your PHI:

- To comply with state or federal laws
- To public health authorities
- To report abuse, neglect, or exploitation (mandatory reporting)
- For law enforcement purposes
- To government agencies during audits or investigations
- As ordered by a court or subpoena

E. For Emergencies

We may use or disclose your PHI if necessary to prevent or reduce a serious threat to health or safety.

F. To Family Members or Caregivers

We may disclose PHI to individuals involved in your care or payment for your care **when you give permission or when allowed by law.**

3. OTHER USES AND DISCLOSURES REQUIRING WRITTEN AUTHORIZATION

We must obtain your written consent before:

- Using your PHI for marketing
- Selling your PHI
- Sharing psychotherapy notes (not typically used in PAS)
- Any other use or disclosure not described in this Notice

You may revoke your authorization at any time in writing.

4. YOUR RIGHTS REGARDING YOUR INFORMATION

You have the following rights regarding your PHI:

A. Right to Access

You may request to view or receive copies of your records.

B. Right to Request Corrections

You may request corrections to incomplete or inaccurate information.

C. Right to Request Restrictions

You may request that we limit the use or disclosure of your PHI.

(We are not required to agree, but we will comply when legally possible.)

D. Right to Confidential Communications

You may request that we contact you in a specific way (e.g., phone only, mailing address, etc.).

E. Right to an Accounting of Disclosures

You may request a list of certain disclosures made during the past six years.

F. Right to Receive a Paper Copy of This Notice

You may request a paper copy at any time, even if you received it electronically.

G. Right to File a Complaint

You may file a complaint if you believe your privacy rights were violated.

You can file with:

- **Safe Comfort Home Care Privacy Officer**
- **U.S. Department of Health and Human Services, Office for Civil Rights (OCR)**

You will **not** be penalized for filing a complaint.

5. CONTACT INFORMATION

Privacy Officer

Safe Comfort Home Care, LLC

Phone: _____

Email: _____

Address: _____

6. CHANGES TO THIS NOTICE

We reserve the right to modify or update this Notice at any time. Changes apply to all PHI we maintain and will be posted and provided upon request.

ACKNOWLEDGMENT OF RECEIPT

I acknowledge that I have received and reviewed the Safe Comfort Home Care, LLC Notice of Privacy Practices.

Client/Representative Name: _____

Signature: _____ Date: _____

Agency Staff/Witness: _____ Date: _____